

Rambilas v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 June 2021 · Writ-C No. 12672 of 2021 · **Writ dismissed; petitioner relegated to Supply Code authority to challenge bill.**

HEADNOTE

A writ challenging an electricity bill is not maintainable where the Electricity Supply Code, 2005 affords a remedy before the competent authority. The Allahabad High Court dismissed Rambilas's petition against the bill dated 09.03.2021 on the ground of alternative remedy, without serving notice on the respondents or deciding the billing dispute on merits.

FACTUAL SUMMARY

Rambilas approached the Allahabad High Court in a writ petition against the State of Uttar Pradesh and two others concerning an electricity bill dated 9 March 2021. Notice of the petition had not been served on counsel for the respondents. Without examining the merits of the billing dispute, the Court considered the prayer and held that the petitioner's proper course was to approach the competent authority under the Electricity Supply Code, 2005 to challenge that bill. The writ was dismissed on the ground of alternative remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

alternative remedy — challenge to electricity bill

HOLDING

Where the petitioner seeks to challenge an electricity bill, the proper remedy is to approach the competent authority under the Electricity Supply Code, 2005; a writ petition is dismissed on the ground of alternative remedy. ¶ 1

FLAG Court invoked the Electricity Supply Code, 2005 generally to challenge the bill dated 09.03.2021; no clause number was stated.

PRINCIPLE TAGS

alternative-remedy-under-supply-code The Court refused to entertain the writ against the 09.03.2021 electricity bill and sent the petitioner to the competent authority under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY BILL DATED 09.03.2021

The Court did not examine the billing dispute; it dismissed solely for alternative remedy under the Supply Code, 2005. ¶ 1